

STATE OF NEW YORK

7727--A

2025-2026 Regular Sessions

IN SENATE

May 1, 2025

Introduced by Sen. SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring certain non-licensed professionals to disclose information regarding risks

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 391-y to read as follows:

3 § 391-y. Self-help practitioner disclosure requirements. 1. Definitions:
4

5 (a) "Self-help practitioner" means any individual, their agent or
6 employee, or company that is publicly holding themselves out as a practitioner or mentor of self-improvement methods in advertising or marketing
7 or utilizing similar terminologies to reach equivalent implications, and
8 is offering financial, spiritual or educational guidance for the purpose
9 of improving personal awareness, identifying and developing personal
10 talent and potential, enhancing the quality of life of a person and/or
11 contributing to the realization of personal aspirations in exchange for
12 payment. A "self-help practitioner" shall not include any individual
13 licensed pursuant to the provisions of title eight of the education law
14 and such licensed individuals shall be exempt from any requirements of
15 this article.
16

17 (b) "Large print format" shall mean a printed font size of sixteen
18 points or larger.

19 (c) "Sudation practice" shall mean any ceremony, ritual, or session in
20 which an individual or group of individuals are subjected to long periods
21 of exposure to intense heat generated by any means, including but

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 not limited to heated rocks, steam, dry heat, for the purposes of phys-
2 ical wellness, purification, prayer, or any other ritual or therapeutic
3 sweating.

4 (d) "Trust exercise" shall mean any activity developed for the purpose
5 of group therapy or team building that involves putting an individual in
6 a vulnerable position requiring such individual to depend on other group
7 members for physical support.

8 (e) "Strength exercise" shall mean physical acts using any part of an
9 individual's body to break, bend, or otherwise destroy another object,
10 including but not limited to breaking bricks, blocks, boards, or bending
11 steel.

12 (f) "Coercive control techniques" shall mean activities that seek to
13 change behaviors either on a group or individual level, including but
14 not limited to neuro-linguistic programming, public shaming, and sharing
15 of personal trauma in a public setting or large group.

16 (g) "Qualifying emergency" shall mean:

17 (i) a federal, state or local state of emergency has been declared.

18 (ii) severe weather or any other similar circumstance exists that may
19 result in an individual being placed in imminent danger of death or
20 injury, or may result in a building structure and/or its fixtures being
21 at risk of significant damage.

22 2. Every self-help practitioner that offers services to clients shall:

23 (a) at the time of each initial contract for services, provide the
24 client with a copy of the contract in which a disclosure of risk is
25 displayed in large print format. Such disclosure of risk shall clearly
26 explain, in plain language, what the risks are in contracting with such
27 self-help practitioner. Such disclosure shall include the following:

28 (i) Disclosure of risk of serious injury, bodily harm, psychological
29 harm, or death in relation to specific activities, events, and services
30 offered. Such activities may include, but are not limited to, sudation
31 practices, sensory deprivation, food deprivation, water deprivation,
32 sleep deprivation, social isolation, exposure to loud noises or music,
33 fire walking, hypnosis, activities using an axe or any weapon defined in
34 section 265.00 of the penal law, tests of endurance, breath manipulation
35 to limit oxygen levels and induce altered mental states, trust exer-
36 cises, rope and other obstacle courses, hikes, rappelling, strength
37 exercises, and coercive control techniques.

38 (ii) A financial and legal disclaimer that clearly and conspicuously
39 states that the self-help practitioner is not certified or registered to
40 give personal financial and/or legal advice, whether as an attorney,
41 accountant, or financial advisor.

42 (iii) A provision that clearly and conspicuously states all necessary
43 information to cancel and, if an available option, request a refund for
44 services, events, and activities not rendered.

45 (b) at the time of each initial contract for services, provide the
46 client with a copy of any credentials, training, or certifications held
47 by the self-help practitioner.

48 (c) produce a comprehensive risk management plan to ensure that steps
49 will be taken at each service or session of an activity to provide
50 protection for clients in the event that there is a reasonable expecta-
51 tion of risk of physical harm or a qualifying emergency. Such activities
52 may include, but are not limited to, sudation practices, sensory depri-
53 vation, food deprivation, water deprivation, sleep deprivation, social
54 isolation, exposure to loud noises or music, fire walking, hypnosis,
55 activities using an axe or any weapon defined in section 265.00 of the
56 penal law, tests of endurance, breath manipulation to limit oxygen

1 levels and induce altered mental states, trust exercises, rope and other
2 obstacle courses, hikes, rappelling, strength exercises, and coercive
3 control techniques. Such comprehensive risk management plan shall
4 include the following:

5 (i) A detailed itemized list of emergency resources and their
6 locations, including but not limited to water, food, medical supplies,
7 and cooling and heating tents.

8 (ii) A detailed outline of the necessary actions by the self-help
9 practitioner or other sponsors of the activity in providing timely
10 notification to the responsible municipal, county, state agency or offi-
11 cial in the event of a qualifying emergency.

12 (iii) An emergency contact list for the self-help practitioner, event
13 leadership, and on-site medical professionals as required by paragraph
14 (d) of this subdivision, to be distributed to members attending the
15 activity.

16 (iv) Location of emergency exits, forms of egress in the event of a
17 fire or similar emergency, and location of shelter-in-place gathering
18 points.

19 (d) be responsible for ensuring that licensed medical professionals
20 are made available to clients at each session or service when there is a
21 reasonable expectation of physical risk or if any activity that requires
22 a comprehensive risk management plan to be developed in accordance with
23 paragraph (c) of this subdivision is taking place.

24 3. This section shall not apply to the traditional, cultural, or reli-
25 gious practices of any federally recognized Native American, or Indian
26 tribe as defined in 25 USC section 5130, or any tribe officially recog-
27 nized by the state of New York, provided that such practices are
28 conducted for non-commercial purposes and are not offered as commercial
29 services to individuals who are not members of a federal or state recog-
30 nized tribe.

31 4. A violation by any self-help practitioner of subdivision two of
32 this section, if such violation constitutes the first such offense by
33 such self-help practitioner, is punishable by a civil penalty not to
34 exceed two hundred fifty dollars. A second offense and any offense
35 committed thereafter is punishable by a civil penalty not to exceed five
36 hundred dollars.

37 § 2. This act shall take effect on the ninetieth day after it shall
38 have become a law.